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Judgement Sheet
IN THE LAHORE HIGH COURT
JUDICIAL DEPARTMENT

Criminal Revision No. 59293 of 2025
(Muhammad Akram v. The State, etc.)

JUDGEMENT

Date of hearing:	09.04.2026
Petitioner by:	Mr. Aazar Latif Khan, Advocate
Respondent No. 3 by:	M/S Kashif Manzoor Coudhary and Mr. Sher Afghan Asadi, Advocates, along with respondent No. 3, namely, Mr. Syed Muhammad Waqar.
State by:	Mr. Jawar ur Rehman, Assistant District Public Prosecutor, with Bashir SI

MUHAMMAD JAWAD ZAFAR, J.: Muhammad Akram (“**petitioner**” or “**accused-petitioner**”) has filed this criminal revision, in terms of Section 435 read with Section 439 of the Code of Criminal Procedure, 1898 (“**Code**” or “**Cr.P.C**”), against orders dated 14.05.2025, 04.08.2025, and 07.08.2025, all passed by the learned Additional Sessions Judge, Court of Session, Lahore (“**Court of Session**” or “**trial Court**”).

2. Syed Muhammad Waqar (“**respondent No. 3**” or “**informant**”) got a crime report recorded bearing FIR No. 503 of 2012, dated 24.05.2012, for offences under Sections 302, 324, 109, and 34 of the Pakistan Penal Code, 1860 (“**PPC**” or “**penal code**”), registered at Police Station South Cantt, Lahore (“**crime report**” or “**FIR**”), on the allegations contained therein. Initially, the petitioner was not nominated in the crime report; however, he was subsequently implicated therein as an accused through a supplementary statement of respondent No. 3. The matter was investigated, and upon completion, the investigating agency submitted a police report in compliance with its duty under Section 173 of the Code. The learned trial court took cognizance of the matter in terms of Section 190(1)(b) of the Code and issued process under Section 204 to the accused persons, completed all pre-trial formalities, and formally indicted them in accordance with Section 265-D read with Chapter XIX of the Code. The accused persons pleaded, under Section 265-E of the Code, their innocence and claimed trial. Consequently, the learned trial court fixed the case for the production of prosecution evidence in

terms of Section 265-F(1) to (3). The prosecution produced all its evidence and, after tendering documentary evidence, closed the same. This led to the fixation of the case for recording statements under Section 342 of the Code, wherein the learned trial court put all recorded prosecution evidence to the accused persons and further inquired whether they wished to appear and depose as their own witnesses under Section 340(2) of the Code, as well as whether they intended to produce defence evidence. Thereafter, upon closure of defence evidence, the case was fixed for final arguments in terms of Section 265-G of the Code.

3. At this stage, an application was moved under Section 540 of the Code for re-summoning of witness Naseer Ahmad, who had already been examined as PW-17. The principal plea was that, while recording the testimony of Naseer Ahmad (PW-17), due to an inadvertent omission, the proceedings of the identification parade of accused-petitioner Muhammad Akram *alias* Bismi could not be exhibited. Alongside the said application, another application was filed in terms of Sections 94, 540, and 265-F of the Code for summoning Mr. Jahanzaib Atta, the then Special Judicial Magistrate who conducted the test identification parade of the accused-petitioner, along with the relevant documents. *Vide* impugned order dated 14.05.2025, the learned trial court, keeping in view the second application, dismissed the first application moved under Section 540 of the Code as infructuous. Through the same impugned order, the learned trial court allowed the latter application, observing that summoning Mr. Jahanzaib Atta was essential for rendering a fair, impartial, and just decision in the case.

4. Subsequently, two further applications were filed. The first pertained to the non-exhibition of the proceedings of the identification parade of accused-petitioner Muhammad Akram *alias* Bismi on the ground of absence of a certified copy, while the second related to the re-summoning of Investigating Officer Shakeel Ahmad SI (PW-12) for further cross-examination. *Vide* consolidated impugned order dated 04.08.2025, the application for de-exhibiting was dismissed, *inter alia*, on the ground that Mr. Jahanzaib Atta, recorded as PW-23, was the author of the exhibited document, and he duly identified its contents and verified his signatures. As regards the application for re-summoning and further cross-examination, the same was dismissed on the basis that the defence had already cross-examined the said witness and, therefore, he could not be recalled for further cross-examination, particularly in the absence of any new fact having been brought

on record during his cross-examination. The defence was already cognizant of the identification parade and had cross-examined him on that aspect as well. Subsequently, the petitioner filed an application seeking declaration of order dated 04.08.2025 as illegal and without lawful authority. This application was filed at a stage when the case was fixed for re-recording the statement of the accused-petitioner under Section 342 of the Code, which too was challenged by the defence. The learned trial court, *vide* order dated 07.08.2025, dismissed the said application for reasons recorded therein.

5. The accused-petitioner has, at the cost of reiteration, assailed the vires of order dated 14.05.2025, order dated 04.08.2025, and order dated 07.08.2025.

6. Arguments of the learned counsel of the accused-petitioner, learned counsel of respondent No. 3, as well as the learned Assistant District Public Prosecutor, were heard and taken into consideration, and with their able assistance, the material available on record was perused.

7. In order to address and decide the legality of all the orders impugned through this revision petition, this Court deems it appropriate to first dissect the statutory provisions of law based whereon the said orders were passed. This is done by addressing the following questions:

- a. Whether the trial court erred in law by summoning Mr. Jahanzaib Atta in terms of Section 265-F read with 540 of the Code as a witness, and document under Section 94 of the Code;
- b. Whether a witness can be re-called for further cross-examination in the absence of re-examination, and whether, when mode of recording testimony of witness is declared legal, a document introduced by said witness can be de-exhibited; and,
- c. Whether statement under Section 342 of the Code can be recorded afresh?

Under the current scheme of criminal procedure, evidence of prosecution is recorded in terms of Section 265-F of the Code. Subsection (2) of the provision *ibid* provides that the learned trial court shall ascertain the names of all the persons likely to be acquainted with the facts of the case and shall summon all such persons to give evidence before it. However, when it appears to the trial court that the witness is being called for the purpose of vexation, delay or defeating the ends of justice, it has the power to refrain from summoning such a witness.¹ Likewise,

¹ See subsection (3) of Section 265-F of the Code.

Section 540 of the Code pertains to the power of the learned trial court to summon any person, at, *inter alia*, any stage of trial, even when such person is not initially summoned as a witness. This provision has two parts. The first enables a court, at any stage of inquiry, trial or other proceedings under the Code, to:

- a. Summon anyone as a witness;
- b. Examine any person in attendance, though not summoned as a witness; or,
- c. Recall and re-examine any person already examined.

The power under this limb appears to be discretionary in nature. As opposed to the first limb, the second part of this provision is mandatory in nature and requires the trial court to exercise any of the powers of the first limb, with a caveat that the evidence of such a person appears to be essential for a fair and just decision. The power bestowed upon the trial court under Section 540 of the Code can be exercised at any stage of any inquiry, trial or other proceeding,² even before production of defence evidence. The legislative intent behind enacting the aforementioned provisions is to ensure that a fair trial and equal opportunity³ is given to both the prosecution and accused,⁴ however, embargoes are placed to prevent filling of lacuna in their case for either side, as elaborated hereinabove. Regarding the plea of filling in lacuna, where it reasonably appears that such evidence/material is necessary for a fair and just decision, then even in the presence of delay or plea of filling in lacuna, the trial court is under a mandatory duty to summon such evidence/material.⁵ It needs no reiterating that the criminal justice system is inquisitorial in nature, as opposed to adversarial,⁶ and the purpose of holding a criminal trial is to ensure that innocent people are acquitted, while only the guilty are incarcerated.⁷ Further, even no application needs to be filed by either side for invoking jurisdiction under this provisions because ‘*calling of*

² The phrase “at any stage” also finds mention in the provisions of Section 249-A and 265-K of the Code and has been interpreted as “*Niaz Ahmed v. Aijaz Ahmed*” (PLD 2024 Supreme Court 1152), wherein, while relying on “*The State v. Raja Abdul Rehman*” (2005 SCMR 1544), it was held that “*The bare perusal of the above-provision reveals that law permits the exercise of powers “at any stage of the case” without specifying a particular stage. The words “at any stage” used in both the sections include the stages before or after framing of the charge or after recording of some evidence.*”⁶.

³ All three provisions existed in the Code before the insertion of Article 10-A in the Constitution of the Islamic Republic of Pakistan 1973 (“**Constitution**”) *vide* the Constitution (Eighteenth Amendment) Act 2010 (“**Eighteenth Amendment Act**”), which Article pertains to fair trial and due process.

⁴ See “*Sajid Mehmood v. The State*” (2022 SCMR 1882).

⁵ See “*Muhammad Azam v. Muhammad Iqbal*” (PLD 1984 Supreme Court 95); and, “*Zabeer Ahmed v. Judge, Special Court*” (PLD 2023 Lahore 528).

⁶ See “*Khuda Bux v. The State*” (2024 PCr.LJ 2014 Sindh); “*Zabeer Ahmed v. Judge, Special Court*” (PLD 2023 Lahore 528); “*Ch. Muhammad Anwar v. Judge Accountability Court No. 4, Lahore*” (2021 MLD 648 Lahore).

⁷ See “*Sultan alias Panun v. The State*” (2025 LHC 825).

*additional evidence is not always conditioned on the defence or prosecution making application for this purpose but it is the duty of the Court to do complete justice between the parties and the carelessness or ignorance of one party or the other or the delay that may result in the conclusion of the case should not be a hindrance in achieving that object’.*⁸ In “*Chairman, NAB v. Muhammad Usman*”,⁹ the honourable Supreme Court of Pakistan held that the role of the court while exercising powers under Section 540 of the Code was inquisitorial where it endeavoured to discover the truth which was suppressed by either party.¹⁰ Since it is the court who summons the witness in order to discover the truth to do complete justice.

8. Akin to the above, Section 94 of the Code empowers the learned trial court to issue directions to any person in whose possession or power a document or thing is believed to be, requiring such person to attend and produce it. The only condition is that the production of such a document is necessary or desirable for the purpose of inquiry or trial. This power may be exercised at any stage of “any proceedings”¹¹, even after the close of defence evidence, where the court considers the production of such material necessary.¹² The fundamental purpose of Section 94 is to ensure a fair trial by affording equal opportunity to both the prosecution and the accused to summon evidence. This provision was dilated upon by the honourable Supreme Court of Pakistan in “*The State v. Chaudhry Muhammad Usman*”,¹³ wherein their lordships held, as under:

‘...section 94 does not restrict as to whose point of view, whether of the prosecution or the accused, the required document may be necessary or desirable for the purposes of the inquiry or trial. A court being a neutral arbiter does not act for either the prosecution or the accused but for the dispensation of justice. And for the dispensation of justice, the court is to ascertain the truth in respect of the matter under inquiry or trial before it. The production of a document that would facilitate the court in this regard is to be considered necessary or desirable for the purposes of the inquiry or trial. It is immaterial whether the production of such a document would support the prosecution case or the defence of the accused. Therefore, any party may at any stage of the inquiry or trial apply to the court, under section 94, for the production of a document and is entitled to its production if it satisfies the court that the production of that document is necessary or desirable for the purposes of such inquiry or trial’.

⁸ See “*The State v. Muhammad Yaqoob*” (2001 SCMR 308).

⁹ PLD 2018 Supreme Court 28.

¹⁰ Also See “*Nawabzada Shah Zain Bugti v. The State*” (PLD 2013 Supreme Court 160); “*Ghulam Rasool Shah v. The State*” (2011 SCMR 735).

¹¹ See “*Muhammad Ramzan v. The State*” (2025 LHC 2033).

¹² See “*Sultan alias Panun v. The State*” (2025 LHC 825).

¹³ 2023 SCMR 1676.

9. The impugned order dated 14.05.2025 has been examined in the light of the jurisprudence discussed hereinabove. In the case at hand, it is an admitted position that the learned Magistrate, Mr. Jahanzaib Atta, had proceeded to Australia and his whereabouts were not known to the prosecution at the time when the prosecution evidence was being recorded. It is further a matter of record that, in the meantime, the courts of Special Judicial Magistrates stood permanently abolished. Owing to such circumstances, the prosecution examined Naseer Ahmad, the then Reader attached to the court of the learned Special Judicial Magistrate, as PW-17. However, upon ascertaining the whereabouts of the said Magistrate, the prosecution promptly moved an application for summoning and recording the deposition of Mr. Jahanzaib Atta. At that stage, learned counsel for the accused-petitioner candidly conceded before the learned trial court, and reiterated before this Court, that identification proceedings in terms of Article 22 of the Qanun-e-Shahadat Order 1984 (“**Order**” or “**QSO**”) were duly conducted. When this fact is considered in conjunction with the circumstance that the crime report was initially lodged against unknown persons, the identification parade assumes the character of a vital piece of evidence, which would advance the cause of justice and assist the learned trial court in arriving at a just conclusion. In this backdrop, the evidence of Mr. Jahanzaib Atta appears to be essential for a fair and just decision of the case. Mere delay in moving the application, particularly when the same stands reasonably explained, does not preclude the learned trial court from exercising its jurisdiction under the relevant provisions of law. The contention of the learned counsel for the accused-petitioner that the SOPs governing the recording of evidence through video link were not adhered to, and that the deposition of Mr. Jahanzaib Atta recorded as PW-23 is therefore liable to be discarded, and is not supported by any material on the record. The testimony of the said witness was recorded through video link (Skype) without any objection from the defence, while he was present at the Consulate General of Pakistan, Melbourne, Australia. Furthermore, he was duly identified by Ms. Syeda Fatima Hassan, Deputy Consul General, Melbourne. Despite strenuous efforts, learned counsel for the accused-petitioner could not controvert these facts. For the foregoing reasons, this Court is of the considered view that no illegality or jurisdictional defect has been committed by the learned trial court in passing the impugned order dated 14.05.2025. Consequently, the instant revision petition, being devoid of merit, is hereby dismissed.

10. Adverting to the another challenge raised by the accused-petitioner, this Court deems it appropriate to first examine whether a witness can be re-summoned for further cross-examination, and thereafter address the question relating to de-exhibition of documents. Insofar as the first limb is concerned, it may be observed that although the provisions of Section 540, Cr.P.C. empower the Court to summon, recall, or re-examine any witness at any stage of the proceedings, the said power is not unfettered. To the extent of re-examination, it is circumscribed by Article 133 of the Qanun-e-Shahadat Order, 1984. Sub-Article (3) thereof expressly provides that re-examination shall be directed only to the ‘*explanations of matters referred to in cross-examination*’.¹⁴ Where a witness is re-examined, the Court may, in appropriate cases, permit further cross-examination confined to matters arising out of such re-examination. In the present case, however, the witness in question was not subjected to re-examination by the prosecution after the conclusion of his cross-examination. In such circumstances, notwithstanding the enabling provision contained in Section 540, Cr.P.C., the said witness cannot be re-summoned at this belated stage solely for the purpose of further cross-examination. Moreover, it *prima facie* appears that the application in question was vexatiously moved with the intent to delay and obstruct the conclusion of the trial. Consequently, the challenge to the impugned order dated 04.08.2025, to this extent, fails.

11. Insofar as the question of de-exhibiting of documents is concerned, suffice to observe that once the order of summoning witness and the mode and manner of recording of his deposition have been upheld, and the document in question was exhibited during the course of the said deposition, then there appears to be no logical nor legal reason to de-exhibit the document pertaining to proceedings of identification parade brought on record as secondary evidence by the author of the proceedings. Even otherwise, at this stage, the document in question has merely been exhibited, therefore, it is axiomatic that questions *qua* its admissibility, reliability, and evidentiary value, can still be adjudged by the learned trial court. Consequently, in view of the deliberation made herein above, impugned order dated 04.08.2025 is upheld.

12. The last challenge raised by the accused-petitioner is directed against

¹⁴ See “*Muhammad Mehboub v. The State*” (Crl. Revision No. 14399 of 2026), authored by myself; also see, “*Mst. Nasreen Fatima alias Nusro v. The State*” (2026 LHC 2052).

impugned order dated 07.08.2025, whereby his application seeking declaration of the order dated 04.08.2025 as illegal, and asserting that there exists no concept of a second statement under Section 342 of the Code, was dismissed. Inasmuch as this Court has already upheld the order dated 04.08.2025, the said contention does not warrant any further elaboration. Nonetheless, the argument that once a statement of an accused under Section 342 of the Code has been recorded, a second statement under the said provision cannot be recorded, has been examined. Upon due consideration, this Court is of the view that the said contention is misconceived. The rationale underlying the recording of a statement under Section 342 of the Code is to put to the accused, in the form of specific questions, the entirety of incriminating material appearing against him, so as to afford him an opportunity to explain the same. This exercise assumes significance in view of the scheme of the QSO, particularly Articles 117 and 122 thereof, whereby once the prosecution discharges its initial burden, the onus shifts upon the accused. At that stage, the statement of an accused person, recorded under Section 342 of the Code, is to be considered alongside the prosecution evidence¹⁵ for the purposes of determining the guilt or innocence of the accused, in terms of Section 265-H thereof. Significantly, there is no statutory embargo on re-recording a statement under Section 342 of the Code. The wisdom behind the absence of such restriction appears to be that the legislature has vested the learned trial court with wide powers to summon, recall, or examine any witness, or to call for any document, even after the evidence of both the parties have been closed, where it considers such material essential for a just decision of the case. The expression “at any stage”, as discussed hereinabove, encompasses all stages of the trial prior to the pronouncement of judgement. This would necessarily include situations where additional evidence is brought on record after the recording of an earlier statement under Section 342 of the Code. Had it been the intention of the legislature to bar the re-recording of such a statement, it would have expressly provided so; however, no such limitation has been enacted. To hold otherwise would lead to an anomalous situation, rendering the powers of the learned trial court under Section 540 and Section 94 of the Code nugatory, for the reason that any additional evidence so brought on record could not be put to the accused, and thus could not be used against him in view of the law laid down by the honourable Supreme Court

¹⁵ See “*The State v. Ahmed Omar Sheikh*” (2021 SCMR 873).

of Pakistan. Such an interpretation would defeat the very object of ensuring a fair trial. In somewhat similar circumstances, the High Court of Sindh, in the case of “*Zeeshan alias Shan v. The State*”,¹⁶ observed that:

‘14. Thus, the language of section 342 Cr.P.C is clear and unambiguous that the Section 342 Cr.P.C statement of the accused is to be recorded after the witnesses for the prosecution have been examined and before he is called on for his defence (and not in a piecemeal manner throughout the trial) although the court can ask him questions during the trial if it considers it necessary but all pieces of evidence against him must be put to him after the close of the prosecution case and before he starts his defence case.

15. I find that after recording the two additional PW's pursuant to the prosecutions application under S.540 Cr.P.C the first section 342 Cr.P.C statement fell away entirely and the section 342 Cr.P.C statement of the appellant had to be recorded a fresh putting to him any question which tended to implicate him in the offence and give him the opportunity to explain each and every question before it could be relied upon to convict the appellant. Thus, only the second S.342 Cr.P.C statement can be relied upon in this case’.

When the aforementioned is taken into consideration, no option is left with this Court but to sustain the impugned order dated 07.08.2025.

13. Resultantly, in light of the deliberation made hereinabove, this Court finds no illegality, irregularity, or jurisdictional defect in any of the impugned orders; consequently, this revision petition, being devoid of merits, is **dismissed**.

(MUHAMMAD JAWAD ZAFAR)
JUDGE

Ejaz*

Approved for Reporting

JUDGE

¹⁶ 2025 YLR 816 Sindh.